

CHAPTER 12.

An Act to provide for the payment of a subsidy in respect of sugar and molasses manufactured in Great Britain during a period of ten years beginning on the first day of October, nineteen hundred and twenty-four, from beet grown in Great Britain, and to charge a duty of excise on sugar and molasses manufactured in Great Britain and Northern Ireland from beet grown in those countries. [27th March 1925.]

BE it enacted by the King's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows :—

Rate and
conditions
of payment
of subsidy.

1.—(1) Subject to the provisions of this section and to the satisfaction of such requirements as to proof and otherwise as may be prescribed by rules, there shall, out of moneys provided by Parliament, be paid in respect of every hundredweight of sugar or molasses manufactured in Great Britain during a period of ten years beginning on the first day of October, nineteen hundred and twenty-four, from beet grown in Great Britain (in this Act referred to as “home-grown beet”), a subsidy at the rate prescribed by the First Schedule to this Act.

(2) The subsidy shall not be payable—

- (a) in respect of any sugar or molasses unless it is shown to the satisfaction of the Minister that the price paid or agreed to be paid for the beet from which the sugar or molasses was manufactured represents a rate not less than the minimum price per ton (if any) prescribed as respects that beet by the Second Schedule to this Act; or
- (b) in respect of sugar or molasses manufactured in any particular factory, unless it is shown to the satisfaction of the Minister that not less than seventy-five per cent. of the plant and

machinery installed in the factory for the manufacture of sugar and molasses consists of plant and machinery wholly manufactured in Great Britain :

Provided that the provisions of this paragraph shall not apply in the case of any factory in respect of which the Minister thinks fit for any special reason to direct that they shall not apply, and in the case of a factory which was used for the manufacture of sugar or molasses before the date of the passing of this Act shall apply only in relation to plant or machinery installed in the factory on or after that date.

The percentage aforesaid shall be ascertained on the basis of the value of the plant and machinery as delivered into the factory.

(3) The Minister may, if he thinks fit, in the case of sugar or molasses manufactured during the year beginning on the first day of October, nineteen hundred and twenty-four, withhold payment of any subsidy payable in respect thereof unless and until he is satisfied that all duties of excise payable in respect thereof have been duly paid.

(4) Subject to the provisions of this section, the subsidy shall be paid to the person by whom the sugar or molasses was manufactured and the amount thereof payable to any person shall be calculated in respect of the amount of sugar which is manufactured by that person in each week and in respect of the amount of molasses which in each week is delivered from the factory or used therein in the manufacture of food for stock, and payment shall be made from time to time as soon as may be after the amount payable in respect of each week has been ascertained :

Provided that where, subject to and in accordance with any rules, sugar or molasses which has been manufactured in one factory is removed into another factory for the purpose of being therein subjected to a further process of manufacture and no claim is made for payment of subsidy in respect of the article as manufactured in the first factory, the subsidy shall be payable in respect of the article as it exists when finally manufactured in the second factory and to the person by whom the article was manufactured therein.

(5) All claims for payment of subsidy shall be made to and determined by the Minister in accordance with rules, and any decision of the Minister given with respect to or in connection with any such claim shall, subject to the provisions of this Act, be final and conclusive.

(6) If any person acts in contravention of or fails to comply with any rule, he shall, in respect of each offence, be liable on summary conviction to a penalty of fifty pounds.

Accounts of
companies
in receipt of
subsidy to
be laid
before Par-
liament.

2.—(1) Any company which manufactures in Great Britain sugar or molasses from home-grown beet shall in every year in which a subsidy is payable under this Act send to the Minister a statement in the form of a balance-sheet, audited by the company's auditors, containing a summary of the company's share capital, its liabilities, and its assets, giving such particulars as will disclose the general nature of those liabilities and assets and how the values of the fixed assets have been arrived at, and also a statement of profit and loss, audited in the like manner. Every such statement shall be made up to such date as may be specified therein and shall be sent to the Minister within ninety days of that date.

(2) Such balance-sheet and statement of profit and loss shall be drawn up in accordance with rules, and the Minister may require such explanations in relation thereto as may seem to him proper.

(3) If a company makes default in complying with the requirements of this section it shall be liable on summary conviction to a fine not exceeding five pounds for every day during which the default continues.

(4) The Minister shall lay before Parliament copies of all balance-sheets sent to him in accordance with the requirements of this section.

Fair wages
to be paid by
employers
in receipt of
subsidy.

3.—(1) The wages paid by any employer to persons employed by him in connection with the manufacture of sugar or molasses in respect of which a subsidy is payable under this Act shall, except where paid at a rate agreed upon by a joint industrial council representing the employer and the persons employed, not be less than would be payable if the manufacture were carried on under a contract made between the Minister and the employer containing a fair wage clause which complied with the

requirements of any resolution of the House of Commons for the time being in force applicable to contracts of Government departments, and if any dispute arises as to what wages ought to be paid in accordance with this section it shall be referred by the Minister to the Industrial Court for settlement.

(2) Where any award has been made by the Industrial Court upon a dispute referred to that Court under this section, then as from the date of the award or from such later date as the Court may direct, it shall be an implied term of the contract between every employer and worker to whom the award applies that the rate of wages to be paid under the contract shall, until varied in accordance with the provisions of this section, be in accordance with the award.

4.—(1) The exemption from duties of excise given by section six of the Finance Act, 1922, in respect of sugar and molasses manufactured from beet grown in Great Britain or Northern Ireland shall cease, and accordingly section five of the Finance Act, 1924 (which makes provision for the excise duties to be charged and the drawbacks and allowance to be allowed and paid in respect of sugar and molasses manufactured in Great Britain or Northern Ireland), shall extend to sugar and molasses manufactured in Great Britain or Northern Ireland from such beet as aforesaid.

Charge of excise duty on sugar and molasses made from beet grown in Great Britain or Northern Ireland.
12 & 13 Geo. 5. c. 17.
14 & 15 Geo. 5. c. 21.
5 & 6 Geo. 5. c. 89.

(2) Part III. of the First Schedule to the Finance (No. 2) Act, 1915 (which contains provisions relating to the excise duties on sugar), shall have effect as though the provisions set out in the Third Schedule to this Act were substituted for paragraph 3 of the said Part III.

(3) This section shall be deemed to have had effect as from the thirtieth day of September, nineteen hundred and twenty-four.

5.—(1) If it is found at any time that any person has obtained any payment by way of subsidy to which, or to part of which, he was not lawfully entitled, the amount of that payment or of that part of the payment may, without prejudice to the recovery thereof as a debt due to the Crown, and without prejudice to the criminal liability, if any, of any person

Repayment of amounts improperly obtained and penalty for false statements, &c.

for any untrue statement or untrue representation, be recovered by the Minister summarily as a civil debt.

(2) If for the purpose of obtaining payment of the subsidy either for himself or for any other person any person makes any untrue statement or untrue representation, he shall, in respect of each offence, be liable on summary conviction to a penalty of fifty pounds, unless he proves that he did not know, and could not with reasonable diligence have ascertained, that the statement or representation was untrue.

(3) If proceedings for an offence under this section or under section one of this Act are instituted by the Commissioners of Customs and Excise, the penalty for the offence shall be deemed to be an excise penalty and shall be recoverable accordingly.

Short title,
interpreta-
tion and
repeal.

6.—(1) This Act may be cited as the British Sugar (Subsidy) Act, 1925.

(2) This Act, so far as it relates to excise duties and excise penalties, shall be construed together with the enactments relating to those duties and the management thereof.

(3) In this Act, unless the context otherwise requires—

The expression “subsidy” means the subsidy payable under this Act in respect of manufactured sugar and molasses:

The expression “factory” includes refinery, and the expression “manufactured” includes refined, and the expression “manufacture” shall be construed accordingly:

The expression “the Minister” means, in the application of the Act to England and Wales, the Minister of Agriculture and Fisheries, and in the application of the Act to Scotland, the Board of Agriculture for Scotland:

The expression “rules” means rules made for the purposes of this Act by the Minister of Agriculture and Fisheries and the Board of Agriculture for Scotland jointly.

(4) Section six of the Finance Act, 1922, is hereby repealed.

SCHEDULES.

FIRST SCHEDULE.

RATE OF SUBSIDY.

Article.	Rate per cwt.		
	If manufactured between 30th Sept., 1924, and 1st Oct., 1928.	If manufactured between 30th Sept., 1928, and 1st Oct., 1931.	If manufactured between 30th Sept., 1931, and 1st Oct., 1934.
	s. d.	s. d.	s. d.
Sugar which when tested by the polariscope indicates a polarisation exceeding 98 degrees	19 6	13 0	6 6
Sugar of a polarisation—			
Exceeding 97 and not exceeding 98	17 11·2	11 11·5	5 11·7
„ 96 „ 97	17 5·6	11 7·7	5 9·8
„ 95 „ 96	17 0·0	11 4·0	5 8·0
„ 94 „ 95	16 6·4	11 0·2	5 6·1
„ 93 „ 94	16 0·8	10 8·5	5 4·2
„ 92 „ 93	15 7·2	10 4·8	5 2·4
„ 91 „ 92	15 1·5	10 1·0	5 0·5
„ 90 „ 91	14 7·9	9 9·3	4 10·6
„ 89 „ 90	14 2·3	9 5·5	4 8·7
„ 88 „ 89	13 8·7	9 1·8	4 6·9
„ 87 „ 88	13 4·0	8 10·7	4 5·3
„ 86 „ 87	12 11·3	8 7·5	4 3·7
„ 85 „ 86	12 7·1	8 4·7	4 2·3
„ 84 „ 85	12 2·9	8 1·9	4 0·9
„ 83 „ 84	11 10·7	7 11·1	3 11·5
„ 82 „ 83	11 6·5	7 8·3	3 10·1
„ 81 „ 82	11 2·7	7 5·8	3 8·9
„ 80 „ 81	10 11·0	7 3·3	3 7·6
„ 79 „ 80	10 7·2	7 0·8	3 6·4
„ 78 „ 79	10 3·5	6 10·3	3 5·1
„ 77 „ 78	9 11·8	6 7·8	3 3·9
„ 76 „ 77	9 8·0	6 5·3	3 2·6

1ST SCH.
—cont.

Article.	Rate per cwt.		
	If manufactured between 30th Sept., 1924, and 1st Oct., 1928.	If manufactured between 30th Sept., 1928, and 1st Oct., 1931.	If manufactured between 30th Sept., 1931, and 1st Oct., 1934.
Molasses—	<i>s. d.</i>	<i>s. d.</i>	<i>s. d.</i>
If containing 70 per cent. or more of sweetening matter - -	12 4·7	8 3·1	4 1·5
If containing less than 70 per cent. and more than 50 per cent. of sweetening matter -	8 10·9	5 11·3	2 11·6
If containing not more than 50 per cent. and not less than 45 per cent. of sweetening matter -	4 3·8	2 10·5	1 5·2
If containing less than 45 per cent. of sweetening matter.	Rates bearing the same proportion to the rates provided by this Schedule in the case of molasses containing not more than 50 per cent. and not less than 45 per cent. of sweetening matter as the percentage of sweetening matter bears to 50 per cent.		

Note.—Where the amount of the sugar or molasses is less than one hundredweight, the rate of the subsidy shall be proportionately reduced.

SECOND SCHEDULE.

MINIMUM PRICES OF BEET.

DESCRIPTION OF BEET.	Price per ton.
Beets grown in the years 1924, • • 1925, 1926 or 1927.	44s.

For the purposes of this Schedule—

- (1) The price means the price payable as in respect of beets properly topped and washed, delivered into the factory sidings or flumes and having a sugar content of fifteen and one-half per cent.

- (2) Where the sugar content of any beets is greater or less than fifteen and one-half per cent. there shall be made an addition to or deduction from the minimum price at the rate of threepence in respect of each 0.1 per cent. above or below fifteen and one half, as the case may be.
- (3) The sugar content of beets shall be ascertained by means of the cold water digestion method.

2ND SCH.
—cont.

THIRD SCHEDULE.

PROVISIONS SUBSTITUTED FOR PARAGRAPH 3 OF
PART III. OF FIRST SCHEDULE TO FINANCE (No. 2)
ACT, 1915.

3. The Commissioners of Customs and Excise may make regulations prohibiting the manufacture of sugar except by persons holding a licence and having made entry for the purpose, and for fixing the date of expiration of the licence, and with a view to securing and collecting the excise duties imposed on sugar and molasses, and to verifying claims for drawback, allowance or subsidy, may make regulations regulating the manufacture of sugar, the use of molasses in a licensed sugar manufactory in the manufacturing of feeding stuffs for stock, and the warehousing and removal from the manufactory of sugar and molasses, and may by those regulations apply to the excise duties and drawbacks on sugar and to manufacturers of sugar any enactments relating to any duty or drawback of excise or customs and to persons carrying on any trade subject to the laws of excise.

If any person acts in contravention of, or fails to comply with, any regulations, made under this Schedule the article in respect of which the offence is committed shall be forfeited, and the person committing the offence shall be liable in respect of each offence to an excise penalty of fifty pounds.
